

21PR00340 Conservatorship of Johanna Maria Wolter

County: santa-barbara

Division: Conservatorship

Department: 4 SM-Cook

Hearing date: 2026-06-22

Motion: Report of Sale and Petition for Order Confirming Sale of Real Property

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Tentative Ruling: Conservatorship of Johanna Maria Wolter

Case Number

21PR00340

Case Type

Conservatorship

Hearing Date / Time

Mon, 06/22/2026 - 08:30

Nature of Proceedings

Report of Sale and Petition for Order Confirming Sale of Real Property

Tentative Ruling

Probate Notes:

The following defects must be remedied before the sale may be held:

No prior Court Order. This Court must be petitioned for the power to sell the conservatee's personal or former residence before "any significant resources" are committed to the sale. (Prob. Code, §2540(c).) There is no court order on file granting the conservator the authority to sell the subject property.

Missing allegations. The following allegations are required by Probate Code section 2540(b), but are missing from the petition:

Conservator discussed the proposed sale with the conservatee.

Conservatee supports sale (or is opposed). (Prob. Code, § 2540(b).)

Circumstances that necessitate the proposed sale, including whether the conservatee has the ability to live in the personal residence and why other alternatives, including, but not limited to, in-home care services, are not available.

Notice is Inadequate. Notice must conform to the same requirements in the provisions governing the sale of real property in decedent's estates. (Prob. Code, § 2543(b).) This includes publication, posting notice by the court clerk, etc. (Prob. Code, §§10308(c); 1230.) The notice in this case was not posted by the clerk and the Proof of Service was not on the proper Judicial Council Form. Notice of at least 15 days is required to the conservator, conservatee, spouse of conservatee (if applicable), the buyer, and any party requesting special notice. (Prob. Code, §§1220(a)(2)(B), 10308(c), and 11601.) Proofs of Service must be filed using form GC-020, attaching form GC-020(C) to that notice.

Proposed Order (DE-260). A proposed order must be submitted with relief that matches that requested in the petition. No such document was filed with the court.

Appraisal Older than Six Months. The conservatee's personal residence must be appraised less than six months prior to the confirmation hearing. (Prob. Code, §2543(c).) The Court has the discretion to find that it is in the best interests of the conservatee to rely on an appraisal of the subject property that was conducted not more than one year prior, if a compelling reason is presented. (Ibid.)

Proposed Order (DE-260). A proposed order must be submitted with relief that matches that requested in the petition. No such document was filed with the court.

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

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